

No. 84450-4

COURT OF APPEALS, DIVISION I,
FOR THE STATE OF WASHINGTON

ZACKARIAH BENNETT,

Appellant,

v.

MELVINA MANNING,

Respondent.

BRIEF OF APPELLANT ZACKARIAH BENNETT

TABLE OF CONTENTS

Catalog

TABLE OF CASES AND AUTHORITIES	3
CASES	3
WASHINGTON STATUTES	3
INTRODUCTION	4
ASSIGNMENTS OF ERROR AND ISSUES ON APPEAL ..	4
A. Assignments of Error.	4
B. Issues Pertaining to Assignments of Error	5
STATEMENT OF THE CASE	5
ARGUMENT	5
CONCLUSION	8

TABLE OF CASES AND

AUTHORITIES

CASES

Seattle Tunnel Partners v. Great Lakes Reinsurance (UK) PLC, ___ P.3d
___ (Wash. Ct. App. Mar. 27, 2023)

May v. Anderson, 345 U.S. 528, 533; 73 S.Ct. 840, 843, (1952)

WASHINGTON STATUTES

RCW 7.105.010(36)

RCW 7.105.305(1)

RCW 9.73.030(b)

INTRODUCTION

The primary issue in this appeal is whether the trial court erred in the matter before this court. I believe it is Prima Facie matter.

ASSIGNMENTS OF ERROR AND ISSUES ON APPEAL

A. Assignments of Error.

1. The hearings court erred in entering the DVPO of August 5, 2023.
2. The court erred in accepting the privileged document labeled “Declaration of John Manning” [08/01/2022].
3. Spoliation of evidence.
4. The court erred in denying my repeated request for production of the security footage.

5. The court erred in its determination of liberty & constitutional applicability.

B. Issues Pertaining to Assignments of Error

STATEMENT OF THE CASE

Prima facie errors of law, abuse of discretion, and spoliation of evidence.

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ARGUMENT

1. The hearings court erred in entering the DVPO of August 5, 2023. The court factually stated that the course of conduct, the required element for Unlawful Harassment (RCW 7.105.010(36)), was not found to be applicable. [see RP pg.54,ln.20 through pg.55,ln.2]
2. The court erred in accepting the privileged document labeled “Declaration of John Manning” [08/01/2022].

- a) The document is an illegally intercepted copy of a privileged conversation (which Mrs. Manning was not party to). [see RP, pg.40,ln.23 through pg.41,ln.3]
- b) it was intercepted, then subsequently edited, by John & Melvina Manning.

3. Spoliation of evidence.

- a) In its recent decision *Seattle Tunnel Partners v. Great Lakes Reinsurance (UK) PLC*, __ P.3d __ (Wash. Ct. App. Mar. 27, 2023), The appellate court describes six factors to consider when evaluating the importance of missing, lost, or destroyed evidence in the spoliation context, including:
 - (1) whether the missing evidence would provide direct evidence of a claim or defense;
 - (2) whether the lost evidence is cumulative of other available evidence;
 - (3) whether the culpable party admitted the evidence's importance;

(4) whether the nonspoliating party had the opportunity to inspect the evidence before it was lost;

(5) whether the loss of the evidence impeded parties from developing expert opinions on liability, causation or damages; and (6) whether the loss of the evidence gave the culpable party an investigative advantage to the prejudice of the nonspoliating party.”

b) The petitioner admitted to the existence of the security footage under penalty of perjury, and knowingly withheld the security footage (including Ring Camera video) that recorded the entire event and my innocence of her claims, while making mala fide claims for her unjust ends. That is clear-cut spoliation.

4. The court erred in denying my repeated request for production of the security footage, as it was sine qua non for the truth to be had, and for justice to be served.

5. The court erred in its determination of liberty & constitutional applicability.

- a) None of my words strayed into the realm of unprotected speech, therefore they are presumptively protected by the 1st amendment.
- b) The United States Supreme Court noted that a parent's right to "the companionship, care, custody and management of his or her children" is an interest "far more precious" than any property right. [May v. Anderson, 345 U.S. 528, 533; 73 S.Ct. 840, 843, (1952)], along with a plethora of similar opinions on the matter.

CONCLUSION

In short, this case is not one of domestic violence. It is abuse of process. It is the courts being used to maintain the theft of a child and alienation of his father. Somehow, she managed to bypass all the safeguards put in place to protect parental rights - without an investigation, without substantiating a single allegation, without me being given any opportunity to be heard,

questioned, or evaluated. All without a shred of truth, with a finding of fact stating only “default”. I’m not a lawyer, nor can I afford one; I am a father, who is loving, and devoted to his children, and who will never give up on them. As of this writing, the protection order has been expired for nearly 2-months, and yet I have not made any attempt to pursue contact. I have never in my life been a threat to my mother, nor my children. All I wish is for my son to know I love him, and that I have never given up trying to be a part of his life. The Manning’s keep my son secluded, with only themselves and my half-sister as his total family. In reality, he has siblings, as well as 4-generations of assorted relatives that are all barred from contact (mostly due to questioning Melvina as to reasoning behind her actions). In conclusion, I request this judgement to be dismissed with prejudice.

Dated this Friday, September 29, 2023. Zackariah Bennett